

Shailendra Singh v. Dhakshinanchal Vidhut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 29 April 2016 · Writ - C No. 16726 of 2016 · Writ - C No. 16726 of 2016
· **Writ disposed; relegated to clause 6.5(b); recovery stayed four weeks.**

HEADNOTE

A consumer who disputes the accuracy of a bill against which recovery has been initiated must complain under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The High Court declined to try disputed questions of fact in writ, gave liberty to complain within one week, directed the competent authority to decide within two weeks, stayed recovery for four weeks or till disposal of the complaint, and ordered restoration of supply forthwith upon deposit of the amount.

FACTUAL SUMMARY

Shailendra Singh, a consumer of Dhakshinanchal Vidhut Vitran Nigam Ltd., filed a writ petition in the Allahabad High Court challenging recovery proceedings initiated by the distribution licensee for outstanding electricity dues. He disputed the correctness of the bill on which those proceedings were founded. The connection appears to have been disconnected, as restoration was sought. Counsel for the State and for the Corporation appeared. The order records no particulars of the service connection, billing period, or the amount claimed as arrears.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

accuracy of bill / recovery of dues

HOLDING

Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 is the forum for a consumer who disputes the accuracy of a bill. Where recovery of outstanding dues is challenged on that footing, disputed questions of fact are to be raised by an appropriate complaint before the competent authority under clause 6.5(b), not in a writ petition. The petition was disposed of with liberty to complain within one week; the authority was directed to pass orders in accordance with law within two weeks; recovery was kept in abeyance for four weeks or till disposal of the complaint, whichever earlier, to abide the authority's order; and the connection was directed to be restored forthwith after the petitioner deposits the amount. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND THE QUANTUM OF OUTSTANDING DUES

Left to the competent authority under clause 6.5(b) as disputed questions of fact. ¶ 1